



IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
COURT – 2

ITEM No.301, 302 & 303

Proceedings under Section 7 IBC

In the matter of: C.P.(IB)/188(AHM)2026

Sheth Fincap Services Private Limited
V/s
Takshashila Corporation LLP

.....Applicant

.....Respondent

And

In the matter of: C.P.(IB)/190(AHM)2026

Sheth Fincap Services Private Limited
V/s
Takshashila Developers Private Limited

.....Applicant

.....Respondent

And

In the matter of: C.P.(IB)/192(AHM)2026

Sheth Fincap Services Private Limited
V/s
Takshashila Resicom Private Limited

.....Applicant

.....Respondent

Order delivered on: 25/09/2026

Coram:

Mrs. Chitra Hankare, Hon'ble Member(J)
Dr. Velamur G Venkata Chalapathy, Hon'ble Member(T)

ORDER

This case is fixed for pronouncement of order. Mr. Arjun Sheth, Advocate appearing for Respondents is absent today. Another counsel appeared and mentioning on behalf of him without filing authority letter or vakalatnama.

The order is pronounced in open court vide separate sheet

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DR. V. G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

sd/-

CHITRA HANKARE
MEMBER (JUDICIAL)



**IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH (COURT-II)**

CP (IB) No. 188 of 2026

And

CP (IB) No. 190 of 2026

And

CP (IB) No. 192 of 2026

*[In the matter under section 7 of the Insolvency and Bankruptcy Code,
2016 read with Rule 4 of the Insolvency and Bankruptcy Application
to Adjudicating Authority Rules, 2016]*

CP (IB) No. 188 of 2026

Sheth Fincap Services Pvt. Ltd

CIN: U65923MH2015PTC261592

3B, Court Chamber 3rd floor

Behind Income Tax Office, Vithaldas

Thackersey Marg New Marine Line,

Mumbai 40000202

Email- bhaveseth@yahoo.com

bshethfinservices@gmail.com

.... Applicant

Versus

Takshashila Corporation LLP (Co-Borrower)

LLPIN: AAC-2724

C/O 560, Silver ARC-B, Open Plot,

Nr. Ashima House, B/h. Town Hall,

Madalpur, Ahmedabad, Ahmedabad,

Gujarat, India, 380006

Email- gihed_ahm@yahoo.com

.....Respondent

AND

CP (IB) No. 190 of 2026

Sheth Fincap Services Pvt. Ltd

sd/-

sd/-



CIN: U65923MH2015PTC261592
3B, Court Chamber 3rd floor
Behind Income Tax Office, Vithaldas
Thackersey Marg New Marine Line,
Mumbai 40000202
Email- bhaveseth@yahoo.com

..... Applicant

Versus

Takshashila Developers Private Limited (Co-Borrower)

CIN: U45200GJ2015PTC085167
C/O 560, Silver ARC-B, Open Plot,
Nr. Ashima House, Town Hall,
Madalpur, Ellisbridge, Ahmedabad,
Ahmedabad, Gujarat, India, 380006

.....Respondent

AND

CP (IB) No. 192 of 2026

Sheth Fincap Services Pvt. Ltd

CIN: U65923MH2015PTC261592
3B, Court Chamber 3rd floor
Behind Income Tax Office, Vithaldas
Thackersey Marg New Marine Lines,
Mumbai 400020
Email- bhaveseth@yahoo.com.
bshethfinservices@gmail.com

..... Applicant

Versus

Takshashila Resicom Private Limited (Co-Borrower)

CIN: U45309GJ2021PTC122070
C/O Takshashila Developers Private Limited,
Takshashila Air, B/h Town Hall,
Ahmedabad, Gujarat, India - 380006
Email- kgondalia@taskshashilaair.com

.....Respondent

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Order pronounced on 25.09.2026.

Coram:

MRS. CHITRA HANKARE
HON'BLE MEMBER (JUDICIAL)

MR. VELAMUR G. VENKATA CHALAPATHY
HON'BLE MEMBER (TECHNICAL)

Appearance:

For the Petitioner : Mr. Nipun Singhvi, Adv.
: Ms. Pragati, Tiwari, Adv.
For the Respondent : Mr. Arjun Sheth, Adv.

JUDGEMENT

1. These petitions are filed under Section 7 of the IBC, 2016 by the financial creditor, a registered NBFC by RBI and incorporated on 03.02.2025 and registered CIN U65923MH2015TC261592 seeking initiation of Corporate Insolvency Process against the Corporate Debtors being co-borrowers for the default amount of Rs.7,40,33,665/-. The date of default is stated to be 15.05.2025.
2. It is submitted that the applicant granted a financial facility of Rs.11 crores to three corporate debtors jointly, namely, i) Takshashila Corporation LLP; ii) M/s Takshashila Developers Private Limited, and iii) M/s

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Takshashila Resicom Private Limited, being Co-borrowers who were jointly and severally liable under a duly executed loan agreement dated 15.03.2024. It is also submitted that the said loan amount was distributed through the Corporate Debtor M/s Takshashila Corporation LLP (Co-borrower) for and on behalf of all the borrowers who had unequivocally undertaken joint and several liability for repayment of the said loan facility. It is said that the interest charged was at the rate of 22.50% per annum with an agreed enhancement to 24% per annum, and was secured by irrevocable and unconditional personal guarantees executed by Mr. Kamlesh Gondalia and Mr. Parthil Gondalia along with a duly registered mortgage deed dated 26.03.2024 creating security over immovable properties. As per the loan agreement the loan period is for 12 months from disbursement date (15 March 2024) and shall be accordingly repaid in its entirety in manner set out in the agreement. It also mentions that the interest shall be payable on monthly basis to which the same applies in advance(upfront) and the repayments are specified by way of advance cheques and the loan is secured by certain

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mortgage deeds. It is also specified in the agreement that the dispute resolution on the agreement will be confined to arbitration proceedings to be conducted at Mumbai, Maharashtra under Arbitration and Conciliation Act, 1996.

3. The applicant issued a notice on 12 November 2024 stating that the amount advanced of Rs.11 crore was serviced by interest on monthly basis and the payments were received for period ending 31 Oct 2024. However, the cheque issued dated 7.11.2024 for Rs.18,56,250 for the period ending 1 Nov 2024 to 30 Nov 2024 was dishonoured due to insufficient funds, thereby the applicant stated that on such failure it constitutes an event of default of the terms of the said loan in terms of clause 10 of the loan agreement and accordingly becomes entitled to declare the said loan, interest and other amounts become immediately repayable and with further rights to enforce the security by sale of the mortgaged properties in the manner set in clause 11 of the agreement.
4. It is submitted that they received reply from the respondents vide letter dated 14 March 2025 that they have repaid a part of the said loan amount out of principal

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amount and accordingly a sum of Rs.5,23,00,000 is now outstanding towards principal loan amount and sought a renewal of the said loan amount outstanding of Rs.5,23,00,000 for the period from 16th March 2025 to 15 May 2025. The respondent also sought to draw up a supplemental loan agreement and other incidental documents. This was consented and a supplemental loan agreement was signed between the parties, duly mentioning the loan agreement dated 26 March 2024 (mortgage deed)duly acknowledging an amount of Rs.11,94,52,010 being due under the original amount advanced and a repayment of a sum of Rs.6,71,52,010 was made towards part repayment of the principal amount of the said loan and Rs.94,52,010 was paid towards interest and accordingly an amount of Rs.5,23,00,000 was due and payable as per the revised loan agreement. The said revised loan agreement was renewed by applicant up to 15 May 2025 as the final due date along with stated amount of interest of Rs.21,26,867 as interest. It is also mentioned that the applicant lender has the right to increase the rate of interest in accordance with any directions or guidelines

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of RBI or any other statutory authority, as applicable. The agreement again restricts the dispute resolution to Arbitration under the Arbitration and Conciliation Act 1996 at Mumbai. A deed of continuing security was also obtained dated 18 March 2025.

5. A fresh demand notice was issued on 14.10.2025 by the applicant claiming a repayment on the debt due (on the underlying loan agreement/s for an amount of Rs.6,15,50,525 and another demand letter dated 09.12.2025 for an outstanding amount of Rs.6,59,27,456, demand letter dated 05.01.2026 for an amount of Rs.6,85,52,851 outstanding as on 31.12.2025, further demand notices on 07.02.2026 and 16.04.2026 for an outstanding amount of Rs.7,13,64,908 (outstanding as on 31 March 2026. A notice was also issued on 04.06.2025 under Section 138 of NI Act for dishonour of cheque bearing No.835901 dated 15 May 2025 & 25.06.2025 for Rs.5,23,00,000 drawn on Bank of India, Ellis Bridge Branch Ahmedabad. The applicant also filed a claim before the RP for the personal guarantors who are also

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Guarantors/ directors of the Respondents, M/s Kamlesh Keshavbhai Gondalia and Mr Parthil Kamlesh Gondalia.

6. The respondents had raised objections through legal counsel dated 17.04.2026 to the demand notice issued by applicant stating that they were false dues and penal interest charged in violation of RBI Guidelines and not annexed the stated documents, further not classifying the account as NPA without following the mandatory guidelines of RBI on NPA for classification. This was replied in detail by the applicant vide letter dated 15.05.2026.
7. Even though this Tribunal had vide orders dated 16.06.2026 directed after hearing the applicant to issue notices and directing respondent to file its reply within 7 days of receipt of notice, the same is not complied. This Tribunal vide order dated 28.08.2026 heard the Ld Counsel for respondents who appeared and filed his vakaltnama, on certain objections raised on the disputed amount, directed both the parties to meet and reconcile within 1 week. Both parties were directed to file legal points on the submissions made by way of written submissions by

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affidavit not more than 2 -3 pages. The respondent has not complied with the order.

8. The respondent RP of the Personal Guarantors who were made a party appeared and filed his reply confirming having admitted the claim of the Personal Guarantors who have as per the agreement guaranteed the loan amount.

9. Observations and conclusions:

a. The applicant has proved the debt and default and the supporting secured document being the personal guarantee and mortgage documents have already been admitted under personal insolvency. The respondent has not filed any reply in the matter but wanted to settle the matter if possible but there has been no progress.

b. The financial debt submitted to have been given is by way of loan agreement and no supporting loan sanction document has been produced even though the applicant is a regulated NBFC. But the respondent has acknowledged the loan and offered to repay the debt by rescheduling the same even though the terms of the loan agreement including the interest (apparently the lending rate even though secured by mortgages apparently seems

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